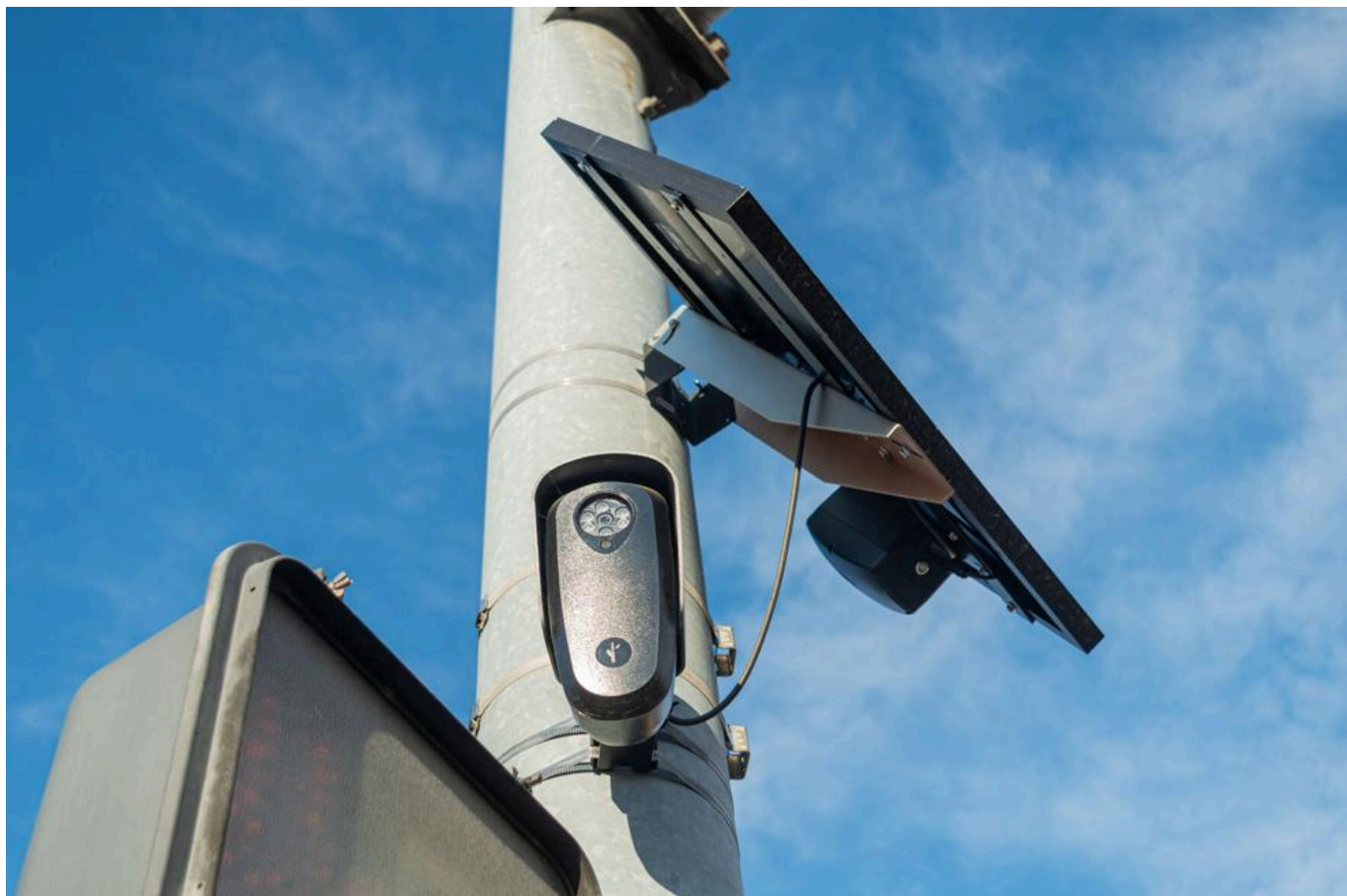


https://www.yakimaherald.com/news/local/government/yakima-city-council-renews-contract-with-flock-safety/article_a20c5041-964d-4e4b-b9f4-d5f35c6853b6.html

Yakima City Council renews contract with Flock Safety

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A Flock license-plate reading camera is mounted on East Yakima Avenue in Yakima.

Donald W. Meyers/Yakima Herald-Republic file

Yakima City Council members voted to renew a contract with Flock Safety in a last-minute reversal on Tuesday night.

Flock is an Atlanta-based company that makes wireless cameras that can scan license plates and identify vehicles based on their make, model, color and other identifying features, providing nearly real-time data on a car's location through a searchable database. The contract renewed on Tuesday, which totals around \$250,000 for a year of service, consolidates five smaller

contracts with expiration dates throughout the year. It includes 87 fixed license plate readers and an annual subscription to the Flock Safety platform.

The Yakima Police Department purchased its first Flock cameras in 2021 using \$130,000 in American Rescue Plan Act funds. In the years since, the technology has expanded across the city. Law enforcement officers have emphasized the importance of the cameras as tools for addressing crime, citing a recent decrease in vehicle thefts and a list of cases ranging from kidnappings to domestic violence where the database has been used to help find suspects. Under state law, law enforcement agencies can only search the database for gross misdemeanor and felony crimes.

Some community members have voiced concerns about implications for privacy, urging the council to let the contracts expire and reinvest in other community resources. Noemi Sanchez was the first of more than half a dozen community members to reiterate those requests in person during public comment at the meeting.

“You have done no apparent research on your own, even minimally,” Sanchez told the council. “You have taken the word of (local police officials) as facts without real interrogation into their sales pitches and have not confronted their biases and have not confronted their conflict of interest. You have not consulted with any outside digital security experts or constitutional legal experts.”

What does the contract say?

Among opponents’ key concerns on Tuesday night were whether purchase of the city’s Flock cameras was an appropriate use of ARPA funds. Community members also shared concerns about more than a dozen cameras they believed could be in violation of Senate Bill 6002, which was signed into law earlier this year and prohibits automatic license plate readers at abortion clinics, immigration offices, schools, food banks, courts and places of worship.

Yakima Police Chief Shawn Boyle said the department evaluated its camera locations after the law passed and removed three of its 87 fixed cameras to comply with the law. It's also stopped using mobile Flock cameras in its patrol cars. He said he would be happy to look at the information provided to council members during public comment to make sure there aren't any additional cameras that need to be moved.

"We're trying to do our job the best we can," Boyle said.

Opponents also expressed concerns about the language of Flock's terms and conditions. Several pointed to a specific portion of the agreement that grants Flock "a limited, non-exclusive, royalty-free, irrevocable, perpetual, worldwide license to (a) use and disclose Customer Data to provide the Flock Services; and (b) use Customer Data to support and improve Flock's products and services," calling into question exactly what the company can use customer data for, and for how long.

Sanchez said she believes the current contract opens the door for data to "be retained and shared by Flock, however they choose."

Flock's license plate reader policy states that the company won't sell, publish, exchange or disclose a customer's license plate reader data for commercial purposes, and it won't share the data with unauthorized parties or disclose or publish the data without authorization, except as required by law. Data in Washington state is permanently deleted after 21 days. Boyle said to his knowledge, Flock doesn't have access to the data after that retention period ends.

According to the policy, license plate reader data is owned by the customer, who can choose whether to share data with other customers. However, Flock may access, preserve or disclose the data to law enforcement authorities, government officials or third parties if legally required to do so or if it believes it necessary to enforce the customer agreement or address security, privacy, fraud or technical issues. The company also uses a small

fraction of collected images, which are stripped of all metadata and identifying information, to improve services through machine learning. Those images are considered “training data.”

“Training Data is used internally to help our systems better recognize vehicles, objects, and descriptions. For example, if a new Red Ferrari is released, we may use de-identified images of that vehicle to teach our system to accurately distinguish it from other vehicles, such as a Red Lamborghini. These images are never sold or shared with third parties,” the agreement states.

Footage is collected on Flock’s devices and transmitted to Amazon Web Services using encryption. The data can be accessed by authorized users with Flock’s web interface. According to the terms and conditions, “Flock retains the exclusive right to determine and control the method, timing, format, and medium of such access or delivery, and is not obligated to provide Customer Data in any alternative form, format, or transmission method outside of the Web Interface.”

Changing course

The contract in council members’ agenda packet didn’t include a copy of Flock’s terms and conditions. Instead, it included a hyperlink to a set of policies and agreements listed on the company’s website. When a community member asked the council to indicate with a show of hands who had reviewed the policies, none of the council did so.

“I would like to have time to actually look through this contract and be able to come back at another time,” Mayor Matt Brown said after hearing from constituents at Tuesday’s meeting. Brown also expressed that he would like a copy of the terms and conditions included with the contract, since the policies and agreements online could be updated at any time.

Initially, council members Juliet Potrykus, Reedy Berg and Patricia Byers voted in favor of the renewal while Brown and council members Felisa Gonzalez and Leo Roy voted against it. Council member Rick Glenn was absent, leaving the council with a 3-3 vote. Per the council's rules, that isn't enough to pass a resolution.

At the end of the meeting, however, Potrykus asked the council to revisit the vote.

Potrykus said she trusts the city's legal team to ensure that the contract is in compliance with state requirements. She also noted that, if the council didn't approve the contract renewal that night, one of the smaller contracts that covers 22 cameras would expire.

Brown made a formal motion to reconsider the resolution. After reading through more of the new terms and conditions during the meeting, he said he felt more comfortable making a decision on the matter. He added that he hadn't originally realized that a failure to renew the contract by June 16 could potentially result in a loss of service for some of the city's Flock cameras.

"There's still some stuff that I do have concerns about in the terms of services, like they can change it at any time — we have to approve it, and if we don't, then the contract is terminated, and so it becomes kind of this weird conundrum. But the license plate readers have been proven to be effective, and I don't want to wait 21 days," Brown said, referring to the council's next scheduled meeting on July 7.

In the second vote, only Gonzalez voted against the renewal.

"I felt like we need more time to research the options and the costs and the benefits," Gonzalez told the Yakima Herald-Republic after the meeting. "I know that Flock has consistently helped the police department do their job

and give them leads that they wouldn't otherwise have without the technology, I just don't know if this is the best system for us to be using... Having more conversation around it would be useful.”

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MORE INFORMATION

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